

FEDERAL MARITIME COMMISSION
Office of Administrative Law Judges

MSRF, INC., *Complainant*

v.

YANG MING TRANSPORT CO., *Respondent*.

DOCKET NO. 22-21

Served: September 15, 2022

ORDER OF: Erin M. WIRTH, *Chief Administrative Law Judge*.

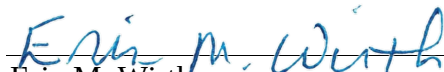
**ORDER GRANTING RESPONDENT’S MOTION FOR CONFIDENTIAL TREATMENT
OF PORTIONS OF THE ANSWER AND EXHIBITS**

On September 13, 2022, Respondent Yang Ming Marine Transport Corporation (“Yang Ming”) moved pursuant to 46 C.F.R. §§ 502.5(b) and 502.69 for confidential treatment of the non-public version of portions of Respondent’s Original Verified Answer (“Answer”) and exhibits. Respondent contends that confidential service contracts contain “sensitive, confidential business information, disclosure of which would cause commercial harm to Respondent Yang Ming and to Complainant” and that Complainant does not oppose the motion. Motion at 1.

Respondent seeks confidential treatment for specific confidential contract terms and service contract pages. The request is reasonable and approved. However, there are two issues with the public version. First, it appears that the confidential information was deleted, making it difficult to tell the amount of information removed. The space between the brackets should be the same in confidential and public versions so that the public knows how much material was excluded. This also ensures that the page numbering is consistent in both versions.

Second, the pagination in the public version does not match the pagination of the confidential version. This may lead to confusion when citing the answer. The request for confidential treatment only impacts the filings by one word on page 3. However, starting on page 11, the pagination is different, based on formatting, not confidential information. Regardless of the reason, the pages in public versions must match the confidential versions. Respondent will be required to refile their public versions to ensure that the pages, including page numbers, match. No other changes to the answer or exhibits may be made.

Accordingly, it is hereby **ORDERED** that the motion for confidential treatment be **GRANTED**. Respondent shall refile their answer and exhibits by September 22, 2022.


Erin M. Wirth
Chief Administrative Law Judge